

**U-MASS DARTMOUTH MAINTAINERS,
LOCAL 6350,
AFT MASSACHUSETTS, AFL-CIO**

CONSTITUTION

October 2006
(amended January 2014, May 2017, April 2022)

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ARTICLE I: Name

This organization shall be known as the U-Mass Dartmouth Maintainers, Local 6350, AFT Massachusetts, AFL-CIO.

ARTICLE II: Objectives

Commented [SH1]: proposed additions?

Section 1. To bring all other workers into a relationship of mutual assistance and cooperation

Section 2. To obtain for all other workers the rights to which they are entitled

Section 3. To raise the standards of the profession by securing the conditions essential to the best service

Section 4. To promote the welfare of those students who come within the sphere of activity of this organization

Section 5. To promote the policy-making role of the workers

Section 6. To promote and respect the civil rights of all citizens

Section 7. To promote such a democratization of the University as will enable it better to equip their students to take their places in the industrial, social, and political life of the community

Section 8. To eliminate racism in education in all its forms

ARTICLE III: Membership

Section 1. Membership may include all maintenance personnel, and other University related personnel employed by the University of Massachusetts at Dartmouth, excluding all Administrative personnel and all other organized units of the AFT.

Commented [SEH2]: amend for GSU or add separate units

Section 2. No discrimination shall be shown toward members or applicants for membership because of race, religious faith, or political belief.

Section 3. Any member who fails to pay his dues shall be notified by letter by the Treasurer. After a short grace period, his name shall be removed from the records of the national office. The member may be reinstated upon the payment of back dues.

Section 4. A member may be expelled for acts detrimental to the Federation upon the presentation of written charges signed by at least one-fourth of the total membership of the Federation and approved by at least three-fourths of the Executive Board. The entire membership shall be notified by letter of the impending action at least seven days prior

to the action. The member shall have the right to appeal the decision to the membership at the following membership meeting and shall be reinstated will full rights by a two-thirds vote of the members present and voting.

Section 5. Workers in public or private institutions outside the jurisdiction of this local may be admitted to membership until such time as a local is chartered in their jurisdiction.

ARTICLE IV: Officers & Duties of Officers

Section 1. The following officers shall be elected triennially [as amended April 2022] by the Federation:

- a. President
- b. Vice-President
- c. Treasurer
- d. Secretary

Section 2. Membership in good standing in the Federation for at least one year is required to hold office.

Section 3. The President shall preside at all meetings of the Federation and of the Executive Board. He shall be ex-officio member of all committees. He shall represent the Federation when and where necessary and shall sign all necessary papers and documents. He shall make a report at least once a year at the annual meeting to the Federation. By virtue of office, the President shall be a delegate to conventions of affiliated bodies.

Section 4. The Vice-President shall perform all the duties of the President in the absence of that officer.

Section 5. The duties of the Treasurer shall be:

- a. To receive, record, and deposit in the name of the Federation money from dues and all other sources.
- b. To keep the membership rolls and issue membership cards, receipts, and delinquent notices.
- c. To forward all per capita dues and current membership lists to the national office of the American Federation of Teachers and to other affiliated organizations to keep this Federation in good standing at all times. Special care should be taken to insure that per capita tax through June thirtieth be sent to the national office no later than fifteen days prior to the opening date of the national convention to make sure that the delegates from this Federation may be seated.

Commented [SEH3]: one possible structure for GSU leadership is to have an chair position, but do we need an officer seat? in a following article it says that chairs are appointed, but the officers here are elected

Commented [SEH4R3]: also we will need a clause for special elections

Commented [SH5R3]: Chelsea Bylaws include a Vice-President for each additional unit (i.e. Graduate Student Vice-President)

Commented [SH6R3]: Chelmsford bylaws specify "executive vice president" and "Bargaining Unit Vice Presidents - one from each bargaining unit represented by the union (for example..."

Commented [SH7]: need an exception for the new union?

- d. To be chairman of the Budget Committee.
- e. He shall present a written report to the Executive Board monthly and to all members at the annual meeting.
- f. To keep adequate records available at all times for the Executive Board and the Budget Committee.
- g. To pay all bills, retaining vouchers or invoices for the same.

Section 6. The Secretary shall issue all notices, shall answer all correspondence at the direction of the President and Executive Board, and shall report all correspondence to the President and the Executive Board. The Secretary shall be the custodian of the seal and charter of the Federation. The Secretary shall record the minutes of the Executive Board and of the general membership meetings and shall notify members of meetings and special meetings.

ARTICLE V: Committees

Section 1. The following committees shall be active in this Federation:

- a. Membership
- b. Budget
- c. Grievance
- d. Nominations-Election
- e. Collective-Bargaining
- f. Social
- g. Scholarship
- h. Committee on Political Education (COPE)

Section 2. The chairman and members of each of the committees shall be appointed by the President.

Section 3. [as amended April 2022] The Collective Bargaining Committee shall be comprised of no less than the President, Vice-President, Secretary, Treasurer and one representative each from the following units:

- a. Custodial
- b. Grounds
- c. Power Plant

Commented [SH8]: Chelmsford adds a "representative council" article to represent all the schools... might be a good structure to make sure all grad workers across schools are represented

Commented [SEH9]: + GSU Committee?

Commented [SH10R9]: "organizing committee"

Commented [SEH11]: if GSU officer is a chair, needs to be elected not appointed

Commented [SEH12]: this will need to be ammended for the different units

d. Trades

The President may add others at their discretion.

Section 4. The Collective Bargaining Committee shall be represented at the bargaining table by the President, Vice-President and two (2) others from the Collective Bargaining Committee and thus nominated by members of the Collective Bargaining Committee. An alternate may also be appointed by the President.

ARTICLE VI: Duties of Committees

Section 1. It shall be the duty of the Membership Committee to investigate all applications for membership and to present them, with recommendations, at any meeting of the Local. The Membership Committee shall plan and execute a dynamic program to insure the growth and vitality of the Federation.

Section 2. It shall be the duty of the Budget Committee to prepare a budget for adoption by the membership prior to June first.

Section 3. It shall be the duty of the Grievance Committee to receive all written grievances and to take appropriate action.

Section 4. It shall be the duty of the Collective Bargaining Committees to prepare and substantiate all collective bargaining proposals.

Section 5. It shall be the duty of the Social Committee to arrange such programs and perform such duties as the local may direct.

Section 6. The Scholarship Committee shall work to raise funds in support of the scholarship(s) offered by the U-Mass Dartmouth Maintainers, Local 6350, AFT Massachusetts, AFL-CIO.

Section 7. It shall be the duty of the Committee of Political Education (COPE) to raise funds for, and to oversee the political education activities of the Federation.

ARTICLE VII: Executive Board

Section 1. The Executive Board of this Federation shall consist of the following:

- a. All elected officers
- b. Chairmen of the Committees
- c. Chief delegate to the local labor council

Commented [SH13]: Fine as long as we edit the officer and committee articles

Commented [SH14R13]: "all elected officers" could imply all of our GSu reps if elections are built in somewhere

Section 2. The Executive Board shall administer the policy of the Federation set by the membership at regular membership meetings. The Executive Board shall have the power to act for the good of the Federation in emergency situations where policy cannot be set by the membership.

Section 3. The chairman of the Executive Board shall be the President of the Federation.

Section 4. The time and place of Executive Board meetings shall be set by the Executive Board and shall be announced at the previous membership meetings.

Section 5. The Executive Board shall have the power to employ all personnel including officers, clerical help and other persons as may be determined by the needs and finances of the Federation.

Section 6. The Executive Board shall report its activities at each regular membership meeting.

Section 7. Twenty-five percent (25%) of the membership of the Executive Board shall constitute a quorum.

ARTICLE VIII: Affiliations

Section 1. This Federation shall maintain affiliation with and whenever possible send delegates to the following organizations:

- a. The American Federation of Teachers. All delegates and alternates to the national convention of the American Federation of Teachers shall be elected by a majority vote at the February membership meeting. The President and Secretary shall certify the election and forward the credentials of all elected delegates and alternates to the national office as soon as possible but no later than fifteen days prior to the opening date of the convention. The Federation must send the list of certified delegates by registered or certified mail. The delegates shall confer with the Treasurer to make sure that the per capita dues for June have been sent to the national office at least fifteen days before the convening of the national convention. The election of delegates and alternates to the national convention shall be conducted according to Article IX of this Constitution.
- b. AFT Massachusetts. Delegates shall be elected according to Article IX of this Constitution.
- c. The Massachusetts State Labor Council. Delegates shall be elected according to Article IX of this Constitution.
- d. The Greater Southeastern Massachusetts Labor Council. The delegates to the central labor council shall be elected according to Article IX of this Constitution.

Section 2. All delegates shall make written reports to the Executive Board on all meetings attended.

Section 3. The Federation to the best of its ability shall be active in affairs of affiliated organizations.

Section 4. Delegates to affiliated organizations shall meet the same requirements as those set for officers of this Federation.

Section 5. Every reasonable effort shall be made by this Federation to pay legitimate expenses of delegates to meetings and conventions of affiliated organizations.

ARTICLE IX: Elections

All elections for Constitutional Officers and delegates to affiliated organizations shall be conducted in accordance with the following procedures:

Section 1. The President shall appoint a Nomination-Election Committee to seek candidates for office, prepare the ballot, and conduct union elections. No candidate for any office shall serve on this committee or participate in the activities of this committee.

Section 2. Any union member who has been a member in good standing for one (1) year is eligible to be nominated for union officer.

Section 3. A notice of nominations and elections shall be prepared and prominently posted [as amended April 2022] by the Nomination-Election Committee to the last known home address of each member of the Federation in order that it may be considered [as amended April 2022] at least fifteen (15) days prior to the date of nominations and at least thirty (30) days prior to the date of the election. Said notice shall contain the date, time and place for nominations and the date, time and place for the election. Said notice shall also explain the nomination procedure.

Section 4. Nominations for office shall be made triennially [as amended April 2022] at the regular July [as amended April 2022] meeting. The Nominations Committee shall accept names of candidates for office by voice at the July [as amended April 2022] meeting. All members of the Federation shall have the opportunity to nominate candidates.

Section 5. All union members in good standing shall be eligible to vote in the elections at the July [as amended April 2022] annual meeting. All members shall vote for constitutional officers and delegates; however, only chapter members shall vote for chapter chairpersons of their respective chapters.

Section 6. The election shall be by secret ballot. Ballots shall be counted before the union meeting adjourns. Observers for the candidates may be present when the Election Committee counts ballots, but they may not participate in the counting.

Commented [SEH15]: not sure what this means

Section 7. The results of the election shall be announced before the union meeting adjourns. The chairperson of the Election Committee shall publish the results in writing over his/her signature and send them to each building representative who shall post them in his/her worksite. The ballots, the tally sheets, the notice of nomination and election, the notice of election results and the names of Election Committee members shall be kept in the union office under the charge of the chairperson for one (1) year following the election.

Section 8. All vacancies in elective office, other than that of the President, shall be filled by members appointed by the Executive Board subject to the approval of the regular membership at the following regular membership meeting. A vacancy in the office of President shall be filled by the Vice-President. Any member or officer who fails to carry out the duties of office or who is not present for three consecutive meetings without notifying the President may be removed.

Commented [SH16]: other bylaws have this case as an election

ARTICLE X: Meetings

Section 1. Regular membership meetings shall be held quarterly at a time and place set by the Executive Board. Notice of these meetings should be posted on union bulletin boards at least two weeks in advance. [amended January 2014]

Section 2. The regular meeting held in July [as amended April 2022] shall be the annual meeting.

Section 3. The Executive Board shall meet prior to each regular meeting.

Section 4. A special meeting may be called by the President with the approval of the Executive Board. A special meeting shall be called by the President upon receipt of a written request for such a meeting signed by fifteen members of the Federation. All members shall be given written notice at least two days prior to any special meeting.

Section 5. A quorum shall consist of 20% of the membership. The President shall announce at the October meeting, the total membership and the number needed to constitute the quorum for that year.

Section 6. If there is no elective presiding officer present, the membership may elect a chairman.

ARTICLE XI: Finances

Section 1. The dues of the Federation shall not exceed the sum of the per capita dues paid to AFT Massachusetts; AFT; Massachusetts State Labor Council; Greater Southeastern Massachusetts Labor Council; and AFT insurance plus:

an amount equal to six hours pay as reflected by the Salary Schedule, Grade 9, Step I.

Commented [SH17]: should there be a per annum/ per year here?

Section 2. One dollar per member per month is to be set aside annually to be used as a militancy and defense fund. The Executive Board shall exercise control over the militancy and defense fund.

Section 3. No other expenditures other than those budgeted, shall be made, nor agreements entered into involving the funds of this Federation, unless by vote of the membership; except that in the case of emergency, the President with the approval of the Executive Board may direct the expenditure of such sums as necessary for the good of the membership provided that such sum does not exceed five hundred dollars.

Section 4. Bills presented to the Treasurer for payment must bear the signature of the member incurring the expense and must be countersigned by the President.

Section 5. This Federation shall annually set aside a sum of money to be awarded as a scholarship to be called the "U-Mass Dartmouth Maintainers Scholarship Award." The amount of the award and the conditions of the scholarship shall be decided by the membership.

ARTICLE XII: Rules of Order

Section 1. Roberts Rules of Order, Revised, shall govern all cases not covered by this Constitution or the by-laws of the Federation.

ARTICLE XIII: Amendments to the Constitution

Section 1. This Constitution and the by-laws thereof may be changed or amended at any regular meeting of the Federation by a two-thirds vote of the members present, provided that the proposed amendment has been read to the members at the regular meeting immediately preceding, or provided that a copy of the proposed amendment has been presented to all members at least fifteen days before the vote on the amendment is taken.

Commented [SEH18]: outlines what we need for amendments

Commented [SEH19R18]: goal is to have new bylaws drafted and sent to union by early october so we can vote at the October 21 meeting

ARTICLE XIV: Availability of the Constitution

Section 1. Three copies of this Constitution and all future amendments shall be submitted to the national office of the American Federation of Teachers and AFT Massachusetts.

Section 2. Copies of this Constitution shall be made available to affiliated organizations upon request.

Section 3. Copies of this Constitution shall be available for any member upon request to the Secretary.

ARTICLE XV: Ratification of Contracts

Section 1. The vote on the ratification of a proposed contract shall be taken by the members of the Bargaining Unit covered by the proposed agreement at a meeting called for the purpose of voting on ratification.

- a. At least five days' notice shall be provided those who will be eligible to vote on the ratification as to the time and the place of the meeting.
- b. Written summaries of the terms and conditions of any tentative agreement shall be available at such ratification meeting.

ARTICLE XVI: Order of Business at Regular Meetings

- a. Call to Order
- b. Minutes of Previous Meeting
- c. President's Report
- d. Treasurer's Report
- e. Reports of Committee Chairmen
- f. Reports of Labor Delegates
- g. Communications
- h. Unfinished Business
- i. New Business
- j. Program
- k. Good and Welfare of Members
- l. Adjournment